

**DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS
APPLICABLE TO HARTSTENE POINTE**

THIS DECLARATION, made on the date hereinafter set forth, by WEYERHAEUSER PROPERTIES, INC., hereinafter referred to as "Declarant,"

WITNESSETH:

WHEREAS, Declarant is the owner of that certain real property on the north tip of Hartstene Island in Mason County, Washington which is more specifically described and identified by the plat,

WHEREAS, Declarant has platted and subdivided the same pursuant to RCW Ch. 58.17, and

WHEREAS, Declarant intends to sell the platted residential lots in said plat,

NOW, THEREFORE, Declarant hereby declares that all of said platted residential lots shall be held, sold and conveyed subject to the easements, restrictions, covenants and conditions hereinafter set forth. These easements, restrictions, covenants and conditions are intended to protect the value and desirability of the aforesaid real property. They shall run with the aforementioned platted residential lots and shall be binding on all parties having or acquiring any right, title, or interest in these platted residential lots or any part thereof, as well as their heirs, successors and assigns. They shall inure to the benefit of each present or future owner of the aforementioned real property or any part thereof or interest therein. They shall supersede and cancel Declarant's previous "Declaration of Covenants, Conditions and Restrictions" recorded in the Mason County land records under County Auditor's fee No. 252 194.

**ARTICLE I
DEFINITIONS**

Section 1. "Association" means the Hartstene Pointe Maintenance Association, a Washington nonprofit corporation.

Section 2. "Declarant" means Weyerhaeuser Properties, Inc., the maker of this Declaration and the record owner of the real property.

Section 3. "Real Property" means the entire land area shown and described by the plat, including the tidelands abutting on such land area to the extent that they are Declarant's property.

Section 4. "Plat" means the plat of Hartstene Pointe, which Declarant filed for recording in the land records of Mason County on July 7, 1970, and which was recorded in the said Mason County records under Auditor's Fee No. 252 193 on pages 80 - 85 of Plat Volume 8.

Section 5. "Platted Residential Lots" means the circular lots shown on the plat and identified thereon by arabic numerals running from 1 to 200.

Section 6. "Common Area" means all real property to be transferred to and to be held by the Association for the common use, enjoyment or benefit of the owners. The Common Area on the Real Property consists of the lots numbered 201 and 202 on the plat.

All permanent structures and fixtures upon the Common Area, including roads and utility systems, shall be deemed a part thereof.

Section 7. "Owner" means the owner, or the contract purchaser in possession, of a Platted Residential Lot. Declarant shall be considered the owner of all lots not yet sold or reacquired by it.

Section 8. "Hartstene Pointe" means the residential community shown by the plat. Such future additions thereto as Declarant may choose to make in accordance with and under the authority of Article XI hereof and the Association's bylaws will be referred to as "Hartstene Pointe, Addition No. 1," "Hartstene Pointe, Addition No. 2," etc.

ARTICLE II PROPERTY RIGHTS

Section 1. Owners' Easement of Enjoyment.

Each Owner shall have a non-exclusive right and easement of enjoyment in and to the Common Area, which shall be appurtenant to, and shall pass with, the title to the Owner's lot. Such right and easement shall be subject only to the following:

- (a) The right of the Association to charge reasonable admission and other fees for the use of any recreational facility situated upon the Common Area;
- (b) The right of the Association to suspend the voting rights and the right to use the Common Area of an Owner for any period during which
 - (i) any assessment against his lot remains unpaid, or

- (ii) any violation of these covenants or of the Association's published rules for which he is responsible remains unabated;
- (c) The right of the Association, acting through its Board of Directors, to dedicate and transfer any utility system on, or which may be a part of, the Common Area, to Mason County;
- (d) The right of the Association to dedicate and transfer all or any part of the remainder of the Common Area to any public agency, authority, or utility for such purposes in such manner and subject to such conditions as may be consistent with the Association's Articles of Incorporation, its Bylaws, and the Washington Nonprofit Corporation Act; and
- (e) The nonexclusive right of all other members of the Association to use, enjoy and have the benefit of the Common Area upon the same terms.

Section 2. Delegation of Use.

An Owner may delegate, in accordance with such rules and regulations as the Association may promulgate, his right of enjoyment of the Common Area and common facilities to the members of his family, his tenants, and his contract purchasers in possession.

ARTICLE III DECLARANT'S DUTY TO CONVEY AND ASSOCIATION'S DUTY TO ACCEPT COMMON AREA

Declarant shall convey to the Association, and the Association shall accept, all or any part of the Common Area as soon as the Association is able to operate and maintain the same in a manner appropriate to the needs and desires of the Owners, or as soon as the Association has an opportunity and wishes to dedicate the same to Mason County or some other suitable governmental body. This Article is not intended to authorize Declarant to delay the transfer of the Common Area indefinitely or otherwise unreasonably.

ARTICLE IV THE ASSOCIATION AND MEMBERSHIP AND VOTING RIGHTS THEREIN

Section 1. Every Owner of a Platted Residential Lot shall be a member of the Association. Membership shall be appurtenant to and may not be separated from ownership of one or more lots subject to assessment.

Section 2. To the extent that they touch and concern the land described by the Plat, the Articles of Incorporation and Bylaws of the Association shall be deemed covenants running with the

land, and shall be as binding upon Owners as if verbatim recited herein.

Section 3. The voting rights of Association members shall be as specified in the Association's Bylaws.

ARTICLE V ASSESSMENTS

Section 1. Creation of the Lien and Personal Obligation of Assessments.

Each Owner other than Declarant, by accepting a deed to or land contract for a Platted Residential Lot (whether or not it shall be so expressed in such instrument), shall be deemed to covenant to pay to the Association.

(1) regular annual assessments, and

(2) special assessments for capital improvement, such regular annual and special assessments to be established and collected as hereinafter provided. The regular annual and special assessments, which may be collected on a monthly, quarterly, or yearly basis, together with interest, costs, and reasonable attorney's fees, shall be a charge on each Owner's Platted Residential Lot, and shall be a continuing lien upon the Platted Residential Lot against which each such assessment is made. Each such assessment, together with interest, costs, and reasonable attorney's fees, shall also be the personal obligation of the person who was the Owner of such Platted Residential Lot at the time when the assessment fell due.

Section 2. Purpose of Assessments.

The regular annual and special assessments levied by the Association shall be used exclusively to administer these covenants, to maintain and improve the Common Area, and generally to promote the recreation, health, safety, comfort, convenience and welfare of the Owners of Hartstene Pointe.

Section 3. Maximum Regular Annual Assessments.

A. The first year in and for which regular annual assessments shall be established and collected shall be the calendar year 1971. The regular annual assessment for such year shall not exceed \$96.00.

B. Beginning January 1, 1972 the maximum annual assessment may be increased each year not more than 3% above the maximum assessment for the previous year without a vote of the membership.

C. Beginning January 1, 1972, the maximum regular annual assessment may be increased above 3% by a vote of 2/3 of each class of members who are voting in person or by proxy, at a meeting duly called for this purpose.

D. The Board of Directors may fix the regular annual assessment at an amount not in excess of the maximum.

Section 4. Special Assessments for Capital Improvements.

In addition to the regular annual assessments authorized above, the Association may levy, in any assessment year, a special assessment applicable to that year only for the purpose of defraying, in whole or in part, the cost of any construction, reconstruction, repair or replacement of a capital improvement upon the Common Area, including fixtures and personal property related thereto, provided that any such assessments shall have the assent of two-thirds of the votes of each class of members who are voting in person or by proxy at a meeting duly called for this purpose.

Section 5. Notice and Quorum for any Action Authorized Under Sections 3 and 4.

Written notice of any meeting called for the purpose of taking any action authorized under Section 3 or Section 4 of this Article V shall be sent to all members not less than 30 days nor more than 50 days in advance of the meeting. At the first such meeting called, the presence of members or of proxies entitled to cast 50% of all votes entitled to be cast by each class of members shall constitute a quorum. If the required quorum is not present, another meeting may be called subject to the same notice requirement, and the required quorum at such subsequent meeting shall be one-half of the required quorum at the preceding meeting. No such subsequent meeting shall be held more than 50 days following the preceding meeting.

Section 6. Uniform Rate of Assessment.

Both regular annual and special assessments must be fixed at a uniform rate for all Platted Residential Lots subject to assessment.

Section 7. Date of Commencement of Regular Annual Assessments; Due Dates.

The regular annual assessments provided for herein shall commence as to all lots subject thereto on the first day of 1971. The Board of Directors shall fix the amount of the regular annual assessment against each lot at least 30 days in advance of the beginning of each annual assessment period. Written notice of the regular annual assessment shall be sent to every Owner subject thereto. The due dates shall be established by the Board of Directors. The Association shall, upon demand, and for a reasonable charge, furnish a certificate signed by an officer of the Association setting forth whether the assessments on a specified Platted Residential Lot have been paid.

Section 8. Proration.

When an Owner purchases a Platted Residential Lot after January 1, 1971, his liability for the regular and special assessments which have been established for the year of purchase shall be prorated in accordance with the number of days remaining in that year on the date of purchase. Such prorated assessments shall be due and payable on the day of closing.

Section 9. Effect of Nonpayment of Assessment; Remedies of the Association.

Any assessment not paid within 30 days after the due date shall bear interest from the due date at the rate of 9% per annum. The Association may bring an action at law against the Owner personally obligated to pay the same, or foreclose the lien against the Platted Residential Lot subject thereto. No Owner subject to assessment may waive or otherwise escape liability for the assessments provided for herein by nonuse of the Common Area or abandonment of his lot. The Association may suspend a delinquent Owner's voting rights and his right to use, enjoy and have the benefit of the Common Area for such period as his delinquency continues.

Section 10. Subordination of Assessment Liens to Declarant's Security Interest.

The lien of the assessments provided for herein shall be subordinate to any security interest of Declarant in any Platted Residential Lot which secures any Owner's obligation to pay Declarant the purchase price of such Platted Residential Lot.

ARTICLE VI ARCHITECTURAL CONTROLS

No building, fence, wall or other structure shall be commenced, erected or maintained upon Platted Residential Lots or the Common Area or any part thereof, nor shall any exterior addition to, or change or alteration therein, be made until the plans and specifications showing the nature, kind, shape, height, materials and location of the same shall have been submitted to and approved in writing as to harmony of external design and location in relation to surrounding structures and topography by the Board of Directors of the Association, or by an architectural control committee composed of three members appointed by the Board. In the event said Board, or the architectural control committee designated by it, fails to approve or disapprove such design and location within 45 days after said plans and specifications have been submitted to it, approval will not be required, and this Article will be deemed to have been fully complied with.

No landscaping work, including the removal of natural trees, shrubs, brush and other ground cover, shall be undertaken on any Platted Residential Lot until the plans and specifications showing the nature and other details of the proposed work shall have been submitted to and approved in writing by the Board of Directors of the Association or by the aforementioned architectural control committee appointed by the Board. In the event said Board, or its designated committee, fails to

approve or disapprove of such proposed landscaping work within 45 days after said plans and specifications have been submitted to it, approval will not be required and this Article will be deemed to have been fully complied with.

ARTICLE VII LAND USE RESTRICTIONS

Section 1. Platted Residential Lots shall be used for single-family residential purposes only.

Section 2. There shall be no water wells on Platted Residential Lots. Owners of such lots desiring a water supply must be connected to the central community water system to be installed by Declarant.

Section 3. No sewage or sanitary waste disposal facility of any kind other than the central community sewer system to be installed by Declarant shall be installed or used upon the Real Property. Owners of Platted Residential Lots requiring sewer or sanitary waste disposal service must obtain the same from the said central community sewer system.

Section 4. No signs shall be erected or maintained on any Platted Residential Lot except

- (a) one sign of not more than 3 square feet identifying lot owners or occupants, and
- (b) one sign of not more than 6 square feet, advertising a Platted Residential Lot for sale or rent.

Nothing herein shall preclude Declarant or its sales agents from erecting and maintaining such temporary signs and structures as may, in Declarant's judgment, promote the development and sale of Platted Residential Lots or other interests in the Real Property.

Section 5. No Platted Residential Lot shall be used for the keeping, raising, or breeding of animals. However, common household pets such as dogs and cats may be kept on a Platted Residential Lot for noncommercial purposes if and so long as they do not become a nuisance.

Section 6. No trash, garbage, rubbish, refuse, or other solid waste of any kind, including particularly inoperable automobiles, appliances, and furniture, shall be thrown, dumped, stored, disposed of, or otherwise placed on any part of the Real Property. Garbage and similar solid waste shall be kept in sanitary containers well suited for that purpose. The Owner or occupant of each Platted Residential Lot shall be responsible for the disposal of solid waste at legally established solid waste disposal facilities outside the Real Property. However, solid waste which is easily combustible and suitable for incineration may be incinerated on Platted Residential Lots, provided

- (a) the incineration equipment used has been approved by the architectural control committee,
- (b) such equipment meets all standards established by law or county ordinance,
- (c) the incineration of such waste does not violate any law, ordinance, or air pollution regulation and does not constitute a nuisance.

Section 7. No Platted Residential Lot shall ever be subdivided.

Section 8. The use of firearms or explosives is prohibited, except as required for construction work duly authorized by the Board of Directors or the architectural control committee.

Section 9. No Owner shall change or interfere with the natural drainage of the Real Property without the prior written approval of the Board of Directors or the architectural control committee.

Section 10.

A. The permanent use or storage upon Platted Residential Lots of house trailers, mobile homes and similar vehicles as dwellings is prohibited. Such vehicles may be used temporarily, with the written approval of the Board of Directors or the architectural control committee, and upon such terms and conditions as the Board of Directors or architectural control committee may choose to prescribe.

B. Boat trailers and boats may be parked or stored on Platted Residential Lots with the written permission of the Board of Directors or the architectural control committee, provided they are adequately screened from public view. The Board of Directors or architectural control committee shall determine what constitutes adequate screening, and such determination shall be conclusive.

C. Travel trailers and campers may be used or parked on Platted Residential Lots

- (i) during the Owner's vacation for a period not exceeding two weeks,
- (ii) on weekends or holidays, and
- (iii) with the written permission of the Board of Directors or architectural control committee

during the period in which a permanent dwelling is constructed upon the Owner's Platted Residential Lot.

During the temporary use of travel trailers or campers under the authority of this subsection, all applicable covenants and restrictions shall be strictly complied with, particularly that concerning sanitary sewage disposal (Article VII, Section 3).

Section 11. No basements, garages, sheds, shacks, outbuildings or impermanent structures such as tents shall be used as dwellings on any Platted Residential Lots except

- (a) with the written permission of the Board of Directors or architectural control committee,
- (b) and then only for such relatively short periods of time as may be specified in the written permit authorizing such use.

Section 12. No fuel tanks shall be maintained above ground on any Platted Residential Lot without written permission of the Board of Directors or architectural control committee, which may grant such permission subject to adequate screening and other appropriate requirements.

Section 13. No vehicle shall be parked on the Common Area except those portions of which have been specifically set aside and designated as parking lots by the Association. No vehicle shall ever be abandoned or dismantled and no major vehicle repair work shall ever be performed on any part of the Common Area. No vehicle in an extreme state of disrepair shall ever be parked or permitted to remain on any part of the Common Area for more than 48 hours. A vehicle shall be deemed in an extreme state of disrepair when it is incapable of moving under its own power, or when, in the opinion of the Directors of the Association or the Architectural Control Committee, its presence offends the reasonable sensibilities of the occupants of Hartstene Pointe.

If any lot Owner violates the foregoing regulations or permits a violation thereof by members of his family, his invitees or his licensees, and fails to cure such violation within 48 hours of having been notified thereof by the Association or the Architectural Control Committee, the Association may correct the offending condition and add the cost of such correction to the assessments to which such Owner's lot is subject.

Section 14. No Platted Residential Lot shall ever be used in a fashion which unreasonably interferes with the other lot Owners' or the Association's right to the use and enjoyment of their respective properties, or the other lot Owners' right to the use and enjoyment of the Common Area. The Board of Directors of the Association or the architectural control committee designated by it shall determine whether any given use of a Platted Residential Lot unreasonably interferes with those rights, and such determination shall be conclusive.

ARTICLE VIII BUILDING RESTRICTIONS

Section 1. Only detached single-family residences and appurtenant outbuildings such as garages, woodsheds, and the like, may be constructed or permitted to remain on Platted Residential

Lots. Only one such residence may be built on each Platted Residential Lot.

Section 2. No construction of such a dwelling may be started on any Platted Residential Lot without first obtaining

- (a) a building permit from the proper local governmental authority, and
- (b) a building permit from the Board of Directors of the Association or the architectural control committee designated by it pursuant to Article VI of these Covenants.

Section 3. Each single-family residence on a Platted Residential Lot shall contain a minimum floor area of 600 square feet exclusive of second floors, open decks (covered or uncovered), garages, covered carports, sheds or other outbuildings.

Section 4. All buildings constructed hereunder shall conform to the specifications and requirements of the most recent revisions of the State of Washington electrical code and the uniform building code in force at the commencement of construction.

Section 5. No building constructed hereunder shall exceed 14 feet in height measured from the original grade unless the Board of Directors or the Architectural Control Committee designated by it grants written permission that this height be exceeded. Such permission may be granted if the Board or Committee is satisfied that no unreasonable interference with the view from neighboring lots will result therefrom.

Section 6. Exterior finishes shall have a flat, non-glossy appearance, and colors shall tend to dark grays, gray-greens and browns. Exterior trim shall be stained or painted so as to complement the finishes they adjoin.

Section 7. All buildings on Platted Residential Lots shall have roof eaves and rake overhangs of not less than 24". The Board of Directors or its Architectural Control Committee may, upon application, grant exemptions from this requirement to Owners who establish, to the satisfaction of the Board of Directors or the Architectural Control Committee, that the building designs desired by the applicants are aesthetically as appealing, as suited to climatic conditions and as compatible with the overall character of Hartstene Pointe as buildings which do meet this requirement.

Section 8. The exterior of any buildings constructed hereunder (including painting or other suitable finish) shall be completed within one (1) year of the beginning of construction so as to present a finished appearance, when viewed from any angle. The building area shall be kept reasonably clean during the construction period.

Section 9. At the time a permanent dwelling is built on a Platted Residential Lot, adequate off-street parking for at least two cars shall be provided on the lot.

Section 10. Garages on Platted Residential Lots may be detached from the main dwelling structure. However, carports and patios must be a part of the main dwelling structure or connected to it by a roof or fence. At least one side of a carport must be enclosed. The design and roof materials of garages and carports shall be compatible with those of the main dwelling.

Section 11. The minimum distance between any point on the boundary of a Platted Residential Lot and the nearest part of any building constructed thereon shall be five feet. A strip five feet in width inside and parallel to the boundary of all Platted Residential Lots shall not be cleared except with the written permission of the Board of Directors or the architectural control committee.

Section 12. No fence, wall, hedge, or landscaping that has a screening effect shall be erected, located, planted or maintained upon any Platted Residential Lot

- (a) without the written approval of the Board of Directors or its architectural control committee, or
- (b) in a manner which would unreasonably obstruct the view from any other Platted Residential Lot. Fences on Platted Residential Lots shall be of wood, stone or brick.

Section 13. Entrances to Platted Residential Lots shall be as originally constructed. Other or additional entranceways or trails may only be constructed or maintained with the written permission of the Board of Directors or its architectural control committee.

Section 14. No building or structure of any kind, erected or maintained or suffered to be erected or maintained by the Owner of a Platted Residential Lot (including particularly piers, floats, docks, or diving boards) may trespass or encroach upon the Common Area. The Association shall have authority to abate any such trespass or encroachment upon the Common Area at any time, by any reasonable means and without having to bring legal proceedings.

Section 15. Exterior lighting of any sort which is visible from any street shown on the plat, any part of the Common Area, or any other Platted Residential Lot in Hartstene Pointe may be installed only with the written permission of the Board of Directors or its architectural control committee.

Section 16. Buildings on Platted Residential Lots requiring sewer service shall be connected to the central community sewer system at the Owner's expense and in a manner which meets with the approval of the Board of Directors or the architectural control committee. The plans for and specifications of such connections shall be submitted as a part of the Owner's application for a building permit.

Section 17. All buildings and landscaped grounds on any Platted Residential Lot shall be kept in a safe and reasonable state of repair, cleanliness and neatness. Lawns shall be mowed at

reasonable intervals. Undesirable weeds having a tendency to spread across property lines shall be kept under control.

ARTICLE IX INTERPRETATION, ADMINISTRATION AND ENFORCEMENT OF THESE COVENANTS

Section 1. If the Board of Directors chooses to appoint an architectural control committee as hereinbefore provided, such committee shall have primary and exclusive jurisdiction to interpret, administer and enforce these covenants and find all facts relative to any claimed or suspected violation. The committee may collect a reasonable application fee from applicants for building permits pursuant to Article VIII, Section 2, of these Covenants.

Any Owner adversely affected by committee action may appeal to the Board of Directors. Appeals shall be made in writing within ten days of the committee's action, and shall set forth the part of the committee's action deemed objectionable. The appeal shall be considered by the Board at its next scheduled meeting, and a final and conclusive determination shall be made by the Board within 15 days after such meeting.

The Committee shall be responsible for seeing to it that lot Owners who may be adversely affected by a Committee decision are given reasonable notice thereof.

Section 2. The Association, acting through its Architectural Control Committee, if any, and its Board of Directors shall be primarily responsible for enforcing these Covenants and for preventing and abating violations thereof. In performing this function it may avail itself of such injunctive and other legal remedies as may be available to it under Washington law. The Association may charge the costs of preventing or abating a violation of these Covenants to the offending Owner and add the amount thereof to his next regular annual or special assessment. Such costs may include a reasonable attorney's fee.

Section 3. Any Owner may complain of an actual or threatened violation of these Covenants to the Architectural Control Committee if there is one, or to the Board of Directors, if there is none, and demand that the Association prevent or abate the same. No Owner may sue to prevent or abate an actual or threatened violation of these Covenants without having done so and without having exhausted the remedies available to him within the Association. However, no building the construction of which has been commenced, and no landscaping work or other structure which has been completed shall be deemed in violation of these Covenants if the same was authorized by a building permit duly issued pursuant to Article VIII, Section 2 of these Covenants.

ARTICLE X AMENDMENT

The covenants and restrictions of this Declaration shall run with and bind the land, for a term of 20 years from the date this Declaration is recorded, after which time they shall be automatically extended for successive periods of ten years. This Declaration may be amended during the first 20-year period by an instrument signed by not less than 90% of the lot Owners, and thereafter by an instrument signed by not less than 75% of the lot Owners. Any amendment must be recorded.

ARTICLE XI ANNEXATION

Declarant shall have the option to add to the Real Property further residential and commercial property and common area located in Sections 19 and 30 of Township 21 North, Range 1 West of Willamette Meridian and Sections 24 and 25, Township 21 North, Range 2 West of Willamette Meridian, by recording plats identifying the same as additions to Hartstene Pointe.

ARTICLE XII SEVERABILITY

Invalidation of any one of these covenants or restrictions by judgment or court order shall in no way affect or invalidate any other provisions, which shall remain in full force and effect.

IN WITNESS WHEREOF, the undersigned, being the Declarant herein, has hereunto set its hand and corporate seal this 6th day of August, 1970.

WEYERHAEUSER PROPERTIES, INC.

Declarant



By

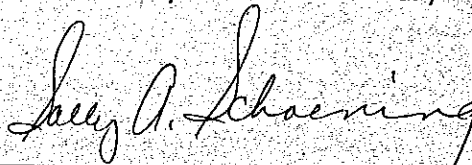
Dick Willard, President

STATE OF WASHINGTON)
) ss.
COUNTY OF KING)

ACKNOWLEDGMENT

On this 6th day of August, 1970, before me personally appeared Dick Willard, to me known to be the President of the corporation that executed the within and foregoing instrument, and acknowledged said instrument to be the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and on oath stated that they were authorized to execute said instrument and that the seal affixed is the corporate seal of said corporation.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.



Notary Public in and for the State
of Washington residing at Bellevue.